

13. 9:00 AM CASE NUMBER: MSC21-02638

CASE NAME: DAVIS VS SCOTT

HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT

FILED BY: CHICAGO TITLE COMPANY

TENTATIVE RULING:

Defendant Chicago Title Company's demurrer to the twelfth cause of action for negligence is **off calendar** as moot in light of the Court's ruling on the motion to dismiss. Defendant shall prepare and serve the order and notice of entry of order.

14. 9:00 AM CASE NUMBER: N25-0867

CASE NAME: PETITION OF: MORTGAGE LENDER SERVICES, INC

***HEARING ON MOTION IN RE: DISTRIBUTION OF SURPLUS FUNDS**

FILED BY: LEWIS, REBECCA

TENTATIVE RULING:

Before the Court is Rebecca Lewis's Claim to Surplus Funds. The Court notes that there was a May 27, 2025 Claim by Robert I. Reed that appears never to have been resolved. While Lewis's claim does not have the Affidavit of Heirship by Alta Maccabee Reed, Reed's Claim does. On August 3, 2026, Susan Mechtel submitted a substantiated claim, but that claim was not previously set for today. The Court continues all three now-filed claims to September 3 so full documentation can be filed on behalf of all three claimants, and Mechtel's filing has the opportunity to be properly placed on calendar.

15. 9:00 AM CASE NUMBER: N25-2380

CASE NAME: SHYLER ACKLEY VS. CITY OF LAFAYETTE

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF LAFAYETTE

TENTATIVE RULING:

Defendant, City of Lafayette, demurs to the petition filed by Shyler Ackley. The demurrer is **sustained without leave to amend**, as discussed below.

I. Background

Petitioner is an uphill neighbor of Nancy Pedneault, owner of "Lot 66." (Petition, ¶1.) Petitioner and twenty-one of his neighbors only access their properties by way of Sessions Road, a 50-foot wide easement that runs through the center of Lot 66. (*Id.* at ¶10.) This easement, and others, are reflected on the subdivision map that established their subdivision, M.S. 502-904. (*Id.* at ¶13.) For decades, because of these easements, Lot 66 was regarded as unbuildable. (*Id.* at ¶14.) In establishing the subdivision, Peter Jakovina opted to burden Lot 66 for the benefit of the other parcels. (*Id.* at ¶15.) Richard Holt, a Planning Commissioner who was on the Commission when the subdivision was approved, purchased Lot 66 from Jakovina while still sitting on the Commission. (*Id.* at ¶17.) Holt later sought a building permit, but was denied following considerable pushback from the uphill residents. (*Id.* at ¶18.)

In 2008, Holt was again unsuccessful in resubmitting an application for a building permit.

(Petition, ¶19.) Holt sued the City and settled the suit pursuant to terms that allowed development of Lot 66. (*Id.* at ¶20.) In 2018, Holt reapplied for a development permit and a variance and the Planning Commission took the position that the easements were "private" easements which needed to be enforced in court because the City would not adjudicate a private dispute. (*Id.* at ¶21.) Before a final decision, the application was withdrawn and Holt passed away. (*Id.* at ¶22.)

Mr. Holt's widow filed for "reapproval", which was granted over neighbors' objection in February 2023. (Petition, ¶23.) In August 2023, Mrs. Holt sold Lot 66 to the current owner, Nancy Pedneault. At that time, there was a valid building permit and variance. (*Id.* at ¶¶24-25.)

On September 22, 2025, the City (1) denied an appeal by petitioner and his neighbors challenging a Planning Commission decision to grant a development permit and variance to Pedneault, and (2) adopted Resolution 2025-45, which issued a building permit and variance to Pedneault. (Petition, ¶1.) Petitioner challenges these actions by the City in this writ petition, which was filed December 9, 2025. (*Ibid.*) He contends, "the City has abdicated its duty to respect a duly approved and recorded subdivision map and, instead, effectively quieted title in the applicant." (*Id.* at ¶31.)

The caption on the petition names the City and Doe defendants, but not any real party in interest. The first paragraph of the petition identifies Nancy Pedneault as the holder of the challenged building permit and variance, establishing that petitioner knew of her role in this matter, but she is not joined as a party.

After efforts to meet and confer pursuant to Code of Civil Procedure section 430.41, subdivision (a) (see Declaration of David J. Bowie, attached to Memorandum in Support of Demurrer, 9:15-17), the City demurred, arguing that Nancy Pedneault is both a necessary and indispensable party, cannot be added as a defendant, and accordingly, the demurrer must be sustained without leave to amend. Petitioner opposes the demurrer.

II. Standard

"When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof, or from any matter of which the court is required to or may take judicial notice, the objection on that ground may be taken by a demurrer to the pleading." (Code Civ. Proc., § 430.30 (a).) One such grounds for demurrer exists based on a defect or misjoinder of parties. (Code Civ. Proc., §§ 430.10, subd. (d).) Another such ground for demurrer is where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The complaint is read as a whole and the parts in their context, considering matters which may be judicially noticed. (*Ibid.*; Code Civ. Proc. § 430.30(a).)

III. Discussion

The determination of whether a party is indispensable is governed by Code Civ. Proc., § 389, which first sets out, in § 389, subd. (a), a definition of persons who ought to be joined in an action if possible (sometimes referred to as necessary parties). (*Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 848.) Then, § 389, subd. (b), sets forth the factors to follow if such a person cannot be made a party in order to determine whether in equity and good conscience the action should proceed among the parties before it, or should be dismissed without prejudice, the absent person being thus regarded as indispensable. (*Ibid.*) The § 389, subd. (b), factors are not

arranged in a hierarchical order, and no factor is determinative or necessarily more important than another. (*Ibid.*, quoting *County of San Joaquin v. State Water Resources Control Bd.* (1997) 54 Cal.App.4th 1144, 1149.)

The factors include: whether or not a judgment rendered in the person's absence might be prejudicial; the extent to which the prejudice can be lessened or avoided; whether a judgment rendered in the person's absence will be adequate; whether the plaintiff will have an adequate remedy if the action is dismissed for nonjoinder. (Code Civ. Proc., § 389, subd. (b).)

A. Necessary Party

The parties here do not dispute that Nancy Pedneault is a necessary party. (See Opp. at 3:19-20. [“Just Because Ms. Pedneault Is a Necessary Party Does Not Mean That She Is Indispensable”].) Accordingly, if possible, the Court must order Pedneault joined. (Code Civ. Proc., § 389 (a) [“If he has not been so joined, the court shall order that he be made a party.”].) Here, this would require granting petitioner leave to amend the petition to name the real party in interest. The City argues this would be impermissible because the statute of limitations has run and the Doe statute cannot properly be invoked under these circumstances.

B. Filing and Service on All Parties Was Required Within 90 Days

The City demurs based on both the 90-day limitations period of Code of Civil Procedure section 1094.6 and the 90-day period set forth in Government Code Section 65009. Other than 90 days, neither party here suggests any alternative limitations period, which is determined by the “gravamen of the action.”

As to Code of Civil Procedure section 1094.6, citing *Simonelli v. City of Carmel-by-the-Sea* (2015) 240 Cal.App.4th 480, 486–487, petitioner contends the statute does not apply to the *grant* of a permit or variance. Even in the absence of that statute, however, Government Code Section 65009 appears to provide the applicable limitations period.

Government Code Section 65009 requires strict compliance with the 90-day period in order to “provide certainty for property owners and local governments regarding decisions made pursuant to this division.” (Gov. Code, § 65009, subd. (a)(3).) The Legislature found that “a legal action or proceeding challenging a decision of a city, county, or city and county has a chilling effect on the confidence with which property owners and local governments can proceed with projects.”

With respect to a challenge like the one here, the First District Court of Appeals has held that Government Code Section 65009 applies to the issuance of a permit that is accompanied by a zoning variance. (*Honig v. San Francisco Planning Dept.* (2005) 127 Cal.App.4th 520, 527-528.)

Further, neither side disputes that the final action subject to challenge here took place on September 22, 2205. Ninety days from September 22, 2205 ran prior to the end of the 2025 calendar year. At this time, the 90-day statute of limitations set forth in Government Code Section 65009 has definitively run.

Petitioner argues section 65009 does not explicitly require service on real parties in interest at the same time as service on the City. As a result, service on Pedneault within the 90-day limitations period was not required. This contention is contrary to the legislative intent underlying section 65009.

In *Honig, supra*, the court held that section 65009 applied for two reasons. First, the plaintiffs were attacking the variance, despite the claim they were challenging the building permit. Second, and

more significantly, the court found it unfair to apply the longer limitations period that governed a challenge to the building permit. The application of the longer period would enable an opponent of the variance to delay a review of the variance decision by failing to promptly serve the challenge to the building permit as opposed to the variance. A non-literal statutory interpretation therefore was required in order to effectuate the legislative intent of promptly resolving challenges to a city's land use decision. (*Honig, supra*, 127 Cal.App.4th at pp. 525-529.)

Petitioner's contention that service on Pendeault was not required within 90 days is unavailing for the same reason as in *Honig*, which he fails to address in the opposition brief. Interpreting section 65009 to permit service on Pendeault after this 90-day period would enable petitioner to delay any review of the City's decision. Review would be delayed because Pendeault is an indispensable party, and a land use challenge cannot be resolved in the absence of an indispensable party. (*Sierra Club, Inc., v. California Coastal Com.* (1979) 95 Cal.App.3d 495, 157 ("Sierra Club").)

In *Sierra Club*, another case petitioner fails to address in his opposition to the demurrer, the plaintiffs challenged a permit for a development project. (*Sierra Club, supra*, 95 Cal.App.3d at 498.) The permit holder was an indispensable party because the relief sought would impair his ability to protect his interest in the project. (*Id.* at 501-502, citing *Bank of California v. Superior Court* (1940) 16 Cal.2d 516, 522; Code Civ. Proc., § 389.) Because the statute had run, the permit holder could not be joined. Moreover, because the permit holder would be able to collaterally attack any judgment against him, granting relief would risk exposure to inconsistent obligations - one from the underlying case and another from a collateral attack. (*Sierra Club, supra*, 95 Cal. App. 3d at 501.) Failure to join an indispensable party is not tantamount to a jurisdictional defect requiring mandatory dismissal. However, to avoid prejudicing an indispensable party by impairing its ability to protect its interest and to prevent future collateral attacks leading to inconsistent judgments, a court should not proceed with an action if an indispensable party is not joined. Consequently, dismissal for failure to join an indispensable party was proper. (*Id.* at 500-502.)

Like the developer in *Sierra Club*, Pendeault holds a permit for an authorized development, and the permit is the subject of an action seeking relief that would injure or affect her interest. Additionally, if she is not joined in the action, she could collaterally attack any unfavorable judgment against her, and the City would be exposed to the risk of inconsistent judgments.

On the other hand, if this action is dismissed, petitioner still has the option of seeking Court intervention with respect to his private easement claims against Pendeault. This is consistent with the reasoning advanced by the City in initially approving the development. (Petition, ¶21 [City "took the position that the easements appearing on the Subdivision Map were 'private' easements and needed to be enforced in court"].)

C. Leave to Amend Not Warranted Because it is Not Possible to Join Pendeault Now

Under Code of Civil Procedure section 410.50, jurisdiction is not obtained until a party is served with a summons (in this case a petition). Pendeault was not named or served in the action before 90 days had run (on December 21, 2025). The Doe statute cannot change this result. Petitioner was not ignorant of real party's identity, so there is no relation back after the statute of limitations has run. (See Code Civ. Proc., § 474; *Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176-177.)

Accordingly, since Pendeault was not properly served by the expiration of the limitations period, there is no possibility that amendment can cure the issue. Pendeault is an indispensable

party (necessary and incapable of being joined), and the demurrer must be sustained without leave to amend.

16. 9:00 AM CASE NUMBER: N26-0497
CASE NAME: PETITION OF: NATIONWIDE INSURANCE COMPANY OF AMERICA
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: NATIONWIDE INSURANCE COMPANY OF AMERICA
TENTATIVE RULING:

Petitioner Nationwide Insurance Company of America seeks to compel Sheilagh Oliver to arbitration pursuant to agreement. Petitioner has provided a facially valid arbitration clause as well as demonstrated failure of Respondent to comply. The Court has received no timely opposition. Good cause shown, the Court **grants** the Petition. The parties are ordered to arbitrate this matter pursuant to their agreement.

The Court grants fees and costs, but believes they should be reduced. Respondent is ordered to pay \$600 in fees, to compensate Petitioner's counsel for three hours of time at the requested rate of \$200 per hour.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C26-00106
CASE NAME: FRANCISCO FRANCO VS. JUNE YOUNG
***HEARING ON MOTION FOR DISCOVERY ORDER COMPELLING PLAINTIFF'S FURTHER RESPONSES TO FORM INTERROGATORIES**
FILED BY: YOUNG, JUNE GRACE
TENTATIVE RULING:

Defendant June Young moves to compel further responses to Form Interrogatories and Special Interrogatories served on Plaintiff Francisco Franco in this action relating to a motor vehicle accident. The Court received no timely opposition to the Motion.¹ On July 30, Defendant filed a Notice of No Opposition Received in which she noted that she *had* received amended interrogatory responses. She appears now to be withdrawing her Motion with respect to the Special Interrogatories and also with respect to most of the Form Interrogatories. Unfortunately, one of the Form Interrogatories she reports she "still finds issue with" was not in the original Motion and does not appear in any of the papers. The Court therefore can only address Form Interrogatory Nos. 6.4 and 8.6.

Form Interrogatories

Form Interrogatory No. 6.4

This interrogatory seeks information relating to health care treatment arising out of the accident.

¹ The Court notes that, in case it has not previously been made clear, this matter has been assigned to Department 10 for all purposes.